

trustee to let trust estates descend, and that however strong the argument might be (if the matter were one of first impression) in favour of holding that the trust may be executed by any person to whom the estate comes consistently with the provision of the original settlement or will, it is too late now to overrule *Cooke v. Crawford*, and the subsequent cases, and to introduce a new principle. And in a subsequent case in Ireland where a testator appointed A. and B. executors and trustees of her will, and devised real estate to them upon trust, that they or the survivor should pay the rents to A. for his life, and after his death sell the estate, it was held that the executors of B., who survived A., could not make a title, notwithstanding the 30th section of the Conveyancing and Law of Property Act, 1881 (b).]

16. *Re Burt's estate*.—In another case (c), where leaseholds were assigned to two trustees, *their executors and administrators*, upon trust; and the surviving trustee devised the leaseholds to *A. and B. upon the same trusts*, and appointed *A. B. and C. executors*; on a petition by A. and B. to the Court to have the trust fund, the proceeds of the leaseholds, paid out to them, Vice-Chancellor Kindersley refused, observing, that the surviving trustee had no authority to bequeath the execution of the trust, but could only pass the legal estate. The petition was then amended by joining C. as a co-petitioner, so that the petition was now that of the legatees, and also of the *executors*; but the Vice-Chancellor still refused, on the ground that the testator had himself declared, that his executors as such should not be trustees, and, therefore, since, by the bequest, he had taken the legal estate from those who ought to have been trustees, there must be an appointment of new trustees.

17. *Where the trust is confided to the trustee and his assigns*.—But it most frequently happens that an estate is vested in A. upon trust, that A., his heirs, executors, administrators, and *assigns*, shall hold upon the trust; and the question then is, whether a *devisee* of A. may, as falling under the description of *assigns*, not only take the estate, but also execute the

[(b) *Re Ingleby and Boak, &c. Insurance Company*, 13 L. R. Ir. 326.]

(c) *Re Burt's Estate*, 1 Drew. 319.